

Refusal of Treatment and/or Transport

Standard:

To establish guidelines for all System Credentialed participants and providers when addressing issues of patient consent or patients refusing treatment and/or transport.

Purpose:

Adult patients with present mental capacity retain the right to refuse care and/or transport against medical advice.

Definitions:

Informed Consent/Refusal

In Texas the general rule of law is that before a person may receive medical treatment they must give informed consent for that treatment. Without consent the medical treatment is unlawful. This is true regardless of whether the person receiving the treatment is a minor or has reached the age of majority (18 years of age).

Informed consent is based on an individual's appreciation and understanding of the facts, implications and future consequences of an action. In order to provide informed consent or refusal a patient must have adequate reasoning faculties(capacity) and be provided with information (risks/benefits) relevant to the decision making process. They should also be aware of the options available to them if they choose not to accept evaluation and/or treatment.

Implied Consent

In potentially life-threatening emergency situations where a patient is unable to give informed consent the law presumes that the patient would give consent if able. In potentially life-threatening emergency situations, consent for emergency care is implied if the individual is:

- 1) Unable to effectively communicate because of an injury, accident, illness, or altered mental status and suffering from what reasonably appears to be a life-threatening injury or illness
OR
- 2) Suffering from impaired present mental capacity
OR
- 3) A minor who is suffering from what reasonably appears to be a life-threatening injury or illness and whose parents, managing or possessory conservator, or guardian is not present

Substituted (Surrogate) Consent

An individual with legal standing may give consent for a patient when the patient does not have the ability to do so because they are a minor, incarcerated or have been determined by courts to be legally incompetent. Parents or guardians are entitled to provide permission because they have the legal responsibility, and in the absence of abuse or neglect, are assumed to act in the best interests of the child.

Refusal of Treatment and/or Transport

The following person(s) may consent to or refuse the evaluation, treatment, and/or transportation of a minor:

1. Parent
2. Grandparent
3. Adult (18 or greater) sibling
4. Adult (18 or greater) aunt or uncle
5. Educational institution in which the child is enrolled that has received written authorization to consent/refuse from a person having the right to consent/refuse.
6. Adult who has actual care, control, and possession of the child **and** has written authorization to consent/refuse from a person with the power to consent /refuse (i.e., daycare camps, carpools, youth sports, etc.)
7. Adult who has actual care, control, and possession of a child under the jurisdiction of a juvenile court
8. A court having jurisdiction over a lawsuit affecting the parent-child relationship of which the child is the subject
9. A peace officer who has lawfully taken custody of minor, if the peace officer has reasonable grounds to believe the minor is in need of immediate medical treatment.
10. A managing or possessory conservator or guardian.

Application:

1. All patients refusing treatment and/or transport must :
 - a) Be at least 18 years of age or an Emancipated Minor;
 - b) Be able to demonstrate present mental capacity in accordance with the Determination of Capacity Procedure.
 - c) NOT have been declared legally incompetent by a court of law. (If a patient has been declared legally incompetent, his/her court appointed guardian has the right to consent to or refuse evaluation, treatment, and/or transportation for the patient.)
 - d) NOT be suicidal or homicidal. (A law enforcement officer may arrest a patient who threatens or attempts suicide under Texas Health and Safety Code Section 573.001. The statute also covers other mentally ill patients and a similar statute allows an arrest for chemical dependency. Only a law enforcement officer can make these arrests.)
2. Patients meeting the above criteria who demonstrate present mental capacity retain the right to refuse any or all treatment and/or transportation. All patients should be encouraged to seek care. Additional resources may be employed, including but not limited to involving the patient's physician, additional providers such as a Commander, DMO, Paramedic Practitioners, or On-line Medical Control.
3. Under no circumstances will ATCEMS System providers refuse or deny treatment or EMS transportation to any patient (or legal patient representative) who requests medical assistance from the provider or agency without contacting OLMC, in accordance with the Provider Initiated No-Transport (PINT) process. The initiation of treatment should not be dependent on the patient's willingness to accept transport. (e.g. hypoglycemia, asthma, etc.) This does not include the administration of narcotic pain medications or sedative agents.
4. ATCEMS System providers shall not discourage any patient (or legal patient representative) from seeking medical care from a physician or from accepting EMS transport to a hospital, except in accordance with the PINT process.
5. When a patient with present mental capacity wishes to refuse care:
 - a) The patient will be instructed that the evaluation and/or treatment is incomplete due to the limitations of the pre-hospital care environment;